

TENTATIVE RULINGS

DEPARTMENT C33

Judge Sandy N. Leal

September 24, 2026 at 10:00 AM

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website in the morning, prior to the hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the Department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5233. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal.App.4th 436, 442, fn. 1 (2012.))

Appearances: Department C33 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C33 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California.

All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time. All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this Department by either coming to the Department at the designated hearing time or contacting the Courtroom Clerk at (657) 622-5233 to obtain login information. For remote appearances by the media or public, please contact the Courtroom Clerk 24 hours in advance so as not to interrupt the hearings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
2	24-01440370 <i>Park vs. Vincent</i>	Motion for Order to Show Cause Defendants/cross-complainants Michael Vincent, Stephanie Violas, CP Cerritos, LLC, CP Cypress LLC, and CP Monrovia LLC's (Defendants) Motion for Order to Show Cause (OSC) Re: Contempt of Court Order is DENIED. Defendants move for an Order to Show Cause directing Plaintiff and her counsel of record to appear and show cause as why they should not be held in contempt of court and sanctioned. Legal standard Contempt which occurs outside the presence of the court is considered indirect contempt. (<i>Hanson v. Superior Court</i> (2001) 91 Cal.App.4th 75, 81.) "Willful failure to comply with an order of the court constitutes contempt. 'A trial court may take action to punish contempt under section 1218 of the Code of Civil Procedure. The elements of proof necessary to support punishment for contempt are: (1) a valid court order, (2) the alleged contemnor's knowledge of the order, and (3) noncompliance. The order must be clear, specific, and unequivocal.'" (<i>Koshek v. Malek</i> (2011) 200 Cal.App.4th 1540, 1548-1549 [cleaned up].) Analysis On 4/28/25, Plaintiff filed five applications for a right to attach order and writ of attachment. (ROA 63-67.) At the 8/7/25 hearing on the applications, the Court tentatively denied all five applications but granted Plaintiff's request to submit supplemental filing. (ROA 103, Lam Decl., ¶¶ 5-6.) Specifically, the Court permitted Plaintiff to submit supplemental filing "limited to the description of the property as to the individuals" by 8/25/25 and continued the hearing to 10/9/25. (ROA 103.) Plaintiff did not file any supplemental filings by the 8/25/25 deadline and on 9/8/25 the Court ruled the prior tentative denying the applications was final and vacated the continued hearing. (ROA 122.) Subsequently, on 9/12/25, Plaintiff filed supplemental/amended applications to address the issues raised at the 8/7/25 hearing. (ROA 127.) Plaintiff then filed a first amended complaint on 9/15/25 and in February 2026, Plaintiff refiled the applications. Plaintiff's proof of service stated she served the applications and supporting documents on Defendants by email on 2/13/26 and 2/21/26, when they had in fact not been served on those dates. (ROA 159, 171; Lam Decl., ¶ 12; Roh Decl., ¶ 3.) On 7/6/26, Plaintiff withdrew the applications. (ROA 228.) In connection with her opposition to this Motion, Plaintiff filed a Notice of Errata on 8/14/26 correcting the proof of service of the applications to 6/1/26. (ROA 243.)

Defendant contends an OCS re contempt and an ultimate finding of contempt is appropriate where Plaintiff refiled the applications despite the Court's 8/7/25 and 9/8/25 orders, violated Code of Civil Procedure section 1008, and made misrepresentation in the applications' proofs of service.

The Court does not find Plaintiff's conduct constitutes contempt. While the Court's order denied Plaintiff's initial applications, the order did not clearly, specifically, or unequivocally prohibit Plaintiff from renewing them.

Defendants contend the Court has no jurisdiction to hear the refiled writs due to Plaintiff's failure to comply with Code of Civil Procedure section 1008 regarding applications to reconsider. Defendants further contend Plaintiff's failure to comply with section 1008 is grounds for contempt pursuant to subdivision (d), which expressly provides a violation of the provision "may be punished as a contempt"

As Plaintiff's writs have been withdrawn, the issue of the Court's jurisdiction to hear them and their timeliness is moot. Additionally, "[a] trial court retains jurisdiction and the discretion to hear a renewed motion after denying previously such a motion, notwithstanding the provisions of section 1008. To so act is within the innate power of the court. While it may be error to reconsider a previous final order under section 1008, subdivision (a), where there is no showing of newly discovered evidence, apart from that subdivision a trial court, in a still pending action, is generally vested with discretion to grant a renewed motion based on a fuller statement of facts previously furnished." (*Film Packages, Inc. v. Brandywine Film Productions, Ltd.* (1987) 193 Cal.App.3d 824, 830 [cleaned up].) Notwithstanding any issues with Plaintiff's compliance with the requirements of section 1008, Plaintiff's refiled writs were not identical to those previously filed but appear to have attempted to provide a fuller statement of facts, including by providing the description of the property to be attached.

Defendants also contend a finding of contempt is appropriate pursuant to Code of Civil Procedure section 1209, subdivision (a)(5), where Plaintiff filed proofs of service falsely stating the writs were served in February 2026. Section 1209, subdivision (a)(5) includes "[d]isobedience of any lawful judgment, order, or process of the court" as an act of contempt. As discussed above, the Court does not find there has been a violation of a Court order. Additionally, Plaintiff contends while the applications were filed in February 2026, she failed to serve them. Plaintiff's counsel states he discovered the applications had not been served while preparing for the hearing, served the applications on Defendants counsel by email on 6/1/26 and prepared a proof of service reflecting that date, but failed to file it with the Court. (Roh Decl., ¶¶ 4-6.) Defendants do not dispute service was made on 6/1/26. (Lam Decl., ¶ 14.)

		Finally, Defendants move for sanctions pursuant to Code of Civil Procedure section 177.5, which provides the Court may impose monetary sanctions for a violation of a lawful court order without good cause or substantial justification. As discussed above, the Court does not find there has been a violation of a Court order.
3	23-01352268 <i>Wilkins vs. Los Alamitos Medical Center, Inc.</i>	Motion for Summary Judgment and/or Adjudication Defendant Sheri Palajwala, MD's Motion for Summary Judgment is CONTINUED to ____. The parties are ORDERED to meet and confer within 10 days of this order to schedule Dr. Lieberman's deposition within 45 days. The deposition shall be limited only the foundation of Dr. Lieberman's opinion regarding the reasonable degree of medical probability of the failure to use closed-loop communication had on Decedent's death. Where there is a legitimate question regarding the foundation of an expert witness' declaration in support of an opposition to a motion for summary judgment, the court must allow the defendant an opportunity to depose the expert regarding that issue. (<i>St. Mary Medical Center v. Superior Court</i> (1996) 50 Cal.App.4th 1531, 1540.) Here, Dr. Palajwala claims there is a question as to the foundation of Dr. Lieberman's declaration. Dr. Lieberman opines "the standard of care required closed-loop communication. In this setting, closed-loop communication means that the neurosurgeon directly communicates the time sensitive change in treatment status to the responsible hospitalist, attending physician, or another provider who is accepting responsibility for the treatment decision; the receiving provider acknowledges and understands the recommendation; and responsibility for the next action is confirmed." (Lieberman Decl., ¶ 12.) He opines Dr. Palajwala's "failure to use closed-loop communication was a substantial factor in the prolonged delay in treatment. Had she directly communicated her clearance and confirmed receipt on October 18, 2022 the physician managing the DVT and pulmonary emboli would more likely than not have been informed that the neurosurgical contraindication had been removed and would have been required to promptly initiate anticoagulation or affirmatively continue the alternative mechanical-protection plan. Instead, Mr. Wilkins remained for approximately twenty-three additional hours without anticoagulation and without an IVC filter." (Lieberman Decl., ¶ 16.) Dr. Lieberman did not consider Dr. Nashed's deposition, where he states he learned of the order clearing decedent for anticoagulants in the late morning of October 18. (Defendant's Ex. 4.) Thus, Lieberman is claiming the failure to use closed-loop communication caused the 23 hour delay, however, if Dr. Nashed knew of the cancellation, this calls into question causation of the failure to use closed-loop communication. Therefore, there is a legitimate question regarding the foundation of Dr. Lieberman's opinion regarding the reasonable degree of medical probability of the failure to use closed-loop communication had on Decedent's death.

6	23-01313302 <i>Carmona vs. Mazella New Tech Corporation</i>	1) Motion for Summary Judgment and/or Adjudication 2) Motion for Summary Judgment and/or Adjudication 3) Motion to Compel Answers to Form Interrogatories MOTION NO. 1: Defendant OC Metals, Inc.’s (“OC Metals”) motion for summary adjudication as to Plaintiff Oscar Carmona’s claims against OC Metals is DENIED in part and GRANTED in part. Defendant’s Evidentiary Objections to the Declaration of Glen Stevick are OVERRULED. (ROA 546.) Defendant’s Evidentiary Objections to the Declaration of Plaintiff are OVERRULED as to Objection Nos. 1, 3, and SUSTAINED as to Objection Nos. 2 and 4. (ROA 545.) Defendant’s Evidentiary Objections to the Declaration of Joshua Cohen Slatkin are OVERRULED as to Objection Nos. 1-8 and 13. (ROA 544.) The court declines to rule on the remaining objections as immaterial to the disposition of the Motion. Defendant’s Evidentiary Objections to Plaintiff’s Compendium of Evidence are OVERRULED as to Objections Nos. 1, 8 and 9. (ROA 543.) The court declines to rule on the remaining objections as immaterial to the disposition of the Motion. Defendant’s Evidentiary Objections to the Declaration of Stacy Rios are SUSTAINED as to Objection No. 1 and OVERRULED as to Objection No. 2. (ROA 542.) Defendant’s Evidentiary Objection to Declaration of Terry McGuire filed in support of defendant Mazzella New Tech Corporation’s (“Mazzella”) Opposition to the Motion are OVERRULED as to Objection Nos. 3 and 4. (ROA 552.) The court declines to rule on the remaining objections as immaterial to the disposition of the Motion. The Court declines to rule on the remaining Evidentiary Objections filed by Defendant and Mazzella as not material to the disposition of the Motion. <u>ISSUE 1:</u> Plaintiff’s Second and Fourth Causes of Action against OC Metals are barred by California’s Worker’s Compensation Exclusivity Rule because the SSQ MultiPro is not a power press as defined by Labor Code section 4558. “The basic theory of workers’ compensation is that where the conditions of compensation exist, benefits under the workers’ compensation act provide the exclusive remedy against an employer for injuries sustained in the course of employment Section 3602, subdivision (a) provides that the only exceptions to this exclusive remedy doctrine are those specifically described in section 3602, subdivision (b), section 3706, and
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section 4558.” (*Award Metals, Inc. v. Superior Court* (1991) 228 Cal.App.3d 1128, 1132 (*Award Metals*).)

Here, Plaintiff alleges that the exception under Labor Code section 4558 known as the “power press” exception applies allowing him to bring his second and fourth causes of action against OC Metals outside of the workers’ compensation exclusivity rule.

Section 4558, subdivision (a)(4) defines a “power press” as “any material-forming machine that utilizes a die which is designed for use in the manufacture of other products.” (Lab. Code § 4558, subd. (a)(4).) Interpreting this definition, the California Supreme Court held that “[i]n defining a ‘power press,’ for purposes of section 4558, in terms of a ‘die,’ the Legislature patently intended to embody the characteristic that differentiates ‘press[es]’ from other ‘material-forming machines[s],’ i.e., the use of a tool that imparts shape to material by pressing or impacting against or through the material, that is, by punching, stamping or extruding.” (*Rosales v. Depuy Ace Medical Co.* (2000) 22 Cal.4th 279, 285 286.) The term “die” denotes a class of tools with two features, “First, they impart form to the material by impact or pressure against the material, rather than along the material. Second, they impart to the material some version of the die’s own shape. The two characteristics are logically related, since the die, acting by impact against the material, can only alter the form of the material where it impacts it, necessarily leaving an impression or cutout of its own shape (unlike a linear cutting blade that, moving along the surface of the material, can be directed to cut out any desired shape).” (*Id.* at pp. 284–85). “An injury caused by the operation of a machine that *could* operate as a power press, but was not so operating at the time of injury, would not be proximately caused by the employer’s removal of, or failure to install, a point of operation guard on a power press.” (*Id.* at pp. 287–88). “In summary, section 4558’s exemption from workers’ compensation exclusivity applies, by the statute’s own plain and express terms, only to material-forming machines utilizing a die; . . . machines using other types of tools [such as a blade] to cut material are not within the statute’s application, even if they would meet a regulatory agency’s definition of power press.” (*Id.* at p. 288).

Undisputed evidence shows Plaintiff was employed by defendants OC Metals and Cal Pac Sheet Metal Inc. as a metal fabricator on the date of the incident. (Defendant’s Undisputed Material Fact (“UMF”) No. 1.) Defendant contends on May 19, 2021, Plaintiff was using the SSQ MultiPro Quick Change – Commercial/Residential Roof Panel Machine (“SSQ MultiPro”) within the course and scope of his employment when he sustained personal injuries including a left-hand amputation. (UMF No. 2.) Plaintiff disputes the model and specific machine used at the time of the incident. Plaintiff has submitted evidence to show Defendant purchased the New Tech SSQ Quick Change Panel Machine- serial number 9090219- on or around February 23, 2019. (Response to UMF No. 2.) Based on this evidence, Plaintiff contends the subject machine on which he sustained a complete left-hand amputation was the New Tech SSQ II Quick Change Commercial/Residential Multi Pro Machine (“SSQ II”). (Response to UMF No. 2.) The parties have submitted conflicting

evidence as to the machine on which Plaintiff was injured, therefore, there is a triable issue of material fact as to whether the subject machine that was used at the time of injury was a SSQ MultiPro or a SSQ II.

As to Defendant's contention the SSQ MultiPro was not a power press, Defendant has shown Plaintiff severed his left-hand with a shear blade used to cut formed panels to their desired length at the exit end of the SSQ MultiPro. (UMF No. 6.) Defendant contends the shear blade imparted no shape or form to the roofing panel, i.e., "necessarily leaving an impression or cut out of its own shape," as required by the California Supreme Court to trigger the power press exception. (*Rosales*, supra, 22 Cal.4th at pp. 284-285; see also UMF No. 7.) Rather, the shear blade at issue here operates similarly to a pair of scissors and cuts after the roof panel has been formed. (UMF No. 8-10.) Therefore, Defendant argues the statutory definition of a power press under section 4558, subdivision (a)(4) is not satisfied.

Plaintiff disputes Defendant's evidence and has shown that Mazzella New Tech ("Mazella"), the manufacturer of the machine admitted in its Responses to Plaintiff's Requests for Admission that the subject machine fits the definition of a power press as defined and developed by case law, explaining that "[t]he subject machine forms metal by force through tools and dies and then is cut with the use of vertical shears." (Plaintiff's Response to UMF 7.) Further, Plaintiff has shown that SSQ II operates by inserting sheet metal on the entry end which is moved through the machine similar to a conveyor belt with a drive system which moves the sheet metal through the machine with 8 top and bottom drive rollers powered by a hydraulic motor which shape the sheet metal to the operator's specifications who is operating the machine with a manual control panel at the exit end of the Machine where the sheet metal is then cut to the desired length with the shear. (Plaintiff's Separate Statement of Disputed Material Facts, ("AMF") No. 5.) Plaintiff's expert, Dr. Glen Stevick also opines that the subject machine design, from an engineering standpoint, is consistent with the wording given in section 4558, subdivision (a)(4). (Stevick Decl., ¶ 24.) Even if the court were to find that there is no triable issue as to the machine that caused Plaintiff's injury and that the machine at issue was the SSQ MultiPro, Mazzella in support of its opposition has submitted a declaration of its Vice President who states the SSQ MultiPro utilizes multiple dies to impart shape to metal. Specifically, a sheet of metal passes the entry point of the machine (where the guard was originally located) and proceeds through a series of roller dies, located above and below the sheet metal. The roller dies impart shape to the metal via angular extrusion, thereby pressing against and impacting the metal, shaping it as it passes through each set of dies. (McGuire Decl., ¶ 7.) Plaintiff and Mazzella's evidence is sufficient to create a triable issue of material fact as to whether the SSQ II and/or SSQ MultiPro at issue is a power press. Specifically, Plaintiff has shown there are triable issues of material fact as to whether the shear blades are properly characterized as a die and whether they cut or impart shape. (*Islas v. D & G Manufacturing Co., Inc.* (2004) 120 Cal.App.4th 571, 579.) ["Generally, the application of a statutory term to a specific set of facts is a question of fact for the jury, unless the material facts are

undisputed and no conflicting inferences can reasonably be drawn from these facts.”]

Therefore, there are triable issues of material fact as to whether the machine that was used at the time of injury is a power press. Accordingly, summary adjudication of Issue 1 is DENIED.

ISSUE 2: Plaintiff’s Second And Fourth Causes of Action against Defendant OC Metals are barred by California’s Workers’ Compensation Exclusivity Rule set forth in Labor Code section 3600, subd. (a) because Defendant OC Metals never specifically authorized the knowing removal, or failure to install, a shear guard required or provided by Specification by the manufacturer of the SSQ MultiPro machine, which is a required element of Labor Code section 4558.

Section 4558, subdivision (b), provides: “An employee, or his or her dependents in the event of the employee’s death, may bring an action at law for damages against the employer where the employee’s injury or death is proximately caused by the employer’s knowing removal of, or knowing failure to install, a point of operation guard on a power press, and this removal or failure to install is specifically authorized by the employer under conditions known by the employer to create a probability of serious injury or death.” (Lab. Code § 4558, subd. (b).) Further, section 4558, subdivision (c) provides, “No liability shall arise under this section absent proof that the manufacturer designed, installed, required, or otherwise provided by specification for the attachment of the guards and conveyed knowledge of the same to the employer. Proof of conveyance of this information to the employer by the manufacturer may come from any source.” (Lab. Code § 4558, subd. (c).)

Here, Defendant has submitted evidence to show Mazzella manufactured and designed the SSQ MultiPro which was delivered to Defendants OC Metals and Cal Pac in 2019 assembled and without a shear guard attached. (UMF Nos. 11-13.) Neither Defendant OC Metals nor Defendant Cal Pac knowingly removed a shear guard from the SSQ MultiPro or knowingly failed to install a shear guard on the SSQ MultiPro prior to Plaintiff’s injury. (UMF Nos. 14-15.) Defendant has also submitted evidence to show neither Defendant OC Metals nor Defendant Cal Pac specifically authorized or gave any affirmative instruction to remove or not install a shear guard on the SSQ MultiPro prior to Plaintiff’s injury. (SSUF No. 16.) At no point prior to the Plaintiff’s injury did Mazzella the manufacturer of the SSQ MultiPro, inform Defendant OC Metals or Defendant Cal Pac of the requirement that a shear guard be installed on the SSQ MultiPro. (UMF No. 17.) There is no mention of any guard in the Specifications, Shear Assembly, Troubleshooting, or List of Figures (the schematics for each of the component parts of the SSQ MultiPro). (UMF Nos. 18-19.)

Plaintiff disputes Defendant’s evidence that it never authorized the knowing removal, or failure to install, a shear guard required or provided by Specification by the manufacturer. Plaintiff has submitted a declaration in which he states Defendants OC Metals and Cal Pac’s

employee, Colton Crocket, who trained Plaintiff to use the subject machine, after the incident, told Plaintiff the machine came with guards to guard the metal shear, and that the shear guards were removed and/or not installed before the incident. (Plaintiff's Decl., ¶ 6.) Plaintiff has also submitted the declaration of his domestic partner and fiancée who avers that she was told by the Safety Director of Defendants OC Metals and Cal Pac, Cathy Valadez, when they were at Defendant's location in Santa Ana, CA after the incident, that the machine came with a shear guard which was not installed at the time of the subject incident. (Rios Decl., ¶ 3.) Plaintiff has also submitted evidence to show the Operation and Maintenance Manual for SSQ II, in Chapter 9 entitled "SHEAR ASSEMBLY" that "The shear is extremely dangerous and can cause serious bodily injury or death. For this reason, the machine is provided with a guard to prevent the operator from reaching into the shear. It is very important that the guard remain in place at all times when the machine is in operation." (AMF No. 11.) Defendant contends Plaintiff cites to the wrong Operation and Maintenance Manual and the correct Manual which is for SSQ MultiPro which has none of the references cited by Plaintiff. To the extent, Defendant contends the subject machine was a SSQ MutiPro, Mazzella has submitted evidence to show the shear guard is part of the SSQ MultiPro and Mazzella does not sell the SSQ MultiPro without a shear guard. (McGuire Decl., ¶ 6.) Since there are triable issues as to the machine that caused Plaintiff's injury, there are also triable issues of material fact as to the applicable Operations and Maintenance Manual and whether the applicable manual specifies the use of the shear guard.

Accordingly, summary adjudication of Issue 2 is DENIED.

ISSUE 3: Plaintiff's Second Cause of Action for Negligence against Defendant OC Metals is barred as a matter of law by California's Worker's Compensation Exclusivity Rule set forth in Labor Code section 3600, subd. (a).

"Actionable negligence requires a legal duty to use due care, breach of that duty, and a proximate causal connection between the breach and the plaintiff's injuries. [Citation.] It does not require direct communication from a manufacturer to the employer regarding the risk involved, nor does it require that the employer specifically authorize the conduct with knowledge that such conduct would create a probability of serious injury or death, all as required under section 4558. Simple negligence thus requires a far lesser showing than that required under section 4558. It follows that a claim based on such negligence does not meet the standards for the power press exception to the exclusive remedy provisions of section 3602." (*Award Metals*, *supra*, 228 Cal.App.3d at p. 1134.)

Here, the second cause of action for Negligence alleges Defendant "negligently installed, inspected, tested, failed to test, and negligently assembled, serviced, maintained and modified the subject machine, and the component parts thereof." (Second Amended Complaint, ¶ 103.) These allegations do not meet the requirements for a violation of section 4558, therefore, Plaintiff's second cause of action for negligence is barred by the workers' compensation exclusivity rule.

Plaintiff's opposition does not address Issue No. 3. Accordingly, summary adjudication of Issue 3 is GRANTED.

ISSUE 4: Plaintiff's Second and Fourth Causes of Action against Defendant OC Metals are barred by the statute of limitations.

"Code of Civil Procedure section 474 permits plaintiffs to bring in defendants if the requirements of section 474 are met. If so, that defendant is considered a party to the action from its commencement." (*Fuller v. Tucker* (2000) 84 Cal.App.4th 1163, 1169-1170.) "Code of Civil Procedure section 474 is to be liberally construed." (*Id.* at p. 1170.)

"Section 474 provides a method for adding defendants after the statute of limitations has expired, but this procedure is available only when the plaintiff is actually ignorant of the facts establishing a cause of action against the party to be substituted for a Doe defendant. The question is whether [the plaintiff] knew or reasonably should have known that he had a cause of action against the defendant. [¶] Ignorance of the *facts* giving rise to a cause of action is the ignorance required by section 474, and the pivotal question is, did plaintiff know *facts*? not did plaintiff know or believe that he had a cause of action based on those facts? Although it is true that a plaintiff's ignorance of the defendant's name must be genuine (in good faith) and not feigned and that a plaintiff need not be aware of each and every detail concerning a person's involvement before the plaintiff loses his ignorance, it is equally true that the plaintiff does not relinquish his rights under section 474 simply because he has a suspicion of wrongdoing arising from one or more facts he does know." (*McClatchy v. Coblenz, Patch, Duffy & Bass, LLP* (2016) 247 Cal.App.4th 368, 371-72 [cleaned up].)

"[S]ection 474 includes an implicit requirement that a plaintiff may not 'unreasonably delay' his or her filing of a Doe amendment after learning a defendant's identity." (*A.N. v. County of Los Angeles* (2009) 171 Cal.App.4th 1058, 1066-1067 (A.N.)) Unreasonable delay "includes a prejudice element, which requires a showing by the defendant that he or she would suffer prejudice from plaintiff's delay in filing the Doe amendment." (*Id.* at p. 1067.) However, "if the identity ignorance requirement of section 474 is not met, a new defendant may not be added after the statute of limitations has expired even if the new defendant cannot establish prejudice resulting from the delay." (*Woo v. Superior Ct.* (1999) 75 Cal. App. 4th 169, 177.)

"Section 474 allows a plaintiff in good faith to delay suing particular persons as named defendants until he has knowledge of sufficient facts to cause a reasonable person to believe liability is probable. The fact that the plaintiff had the means to obtain knowledge is irrelevant. In short, section 474 does not impose upon the plaintiff a duty to go in search of facts she does not actually have at the time she files her original pleading." (*McOwen v. Grossman* (2007) 153 Cal.App.4th 937, 943-44 [cleaned up].)

Plaintiff has shown he filed his initial complaint on March 14, 2023 against the manufacturer defendant Mazella, which was within the applicable statute of limitations. (Slatkin Decl., ¶ 3.) On June 21, 2023, Michael Jenkins, counsel for Defendant Mazella, emailed Plaintiff's counsel a screen shot from the surveillance video depicting the incident along with relevant portions of the operations manual for the subject machine, specifically Chapter 9 regarding shear assembly and the shear guard. (Slatkin Decl., ¶ 4; Ex. 19.) Thereafter, Plaintiff filed a First Amended Complaint on October 9, 2023, alleging liability against the employer. (Slatkin Decl., ¶ 5.) Plaintiff then filed the operative SAC with a cause of action under section 4558 on April 19, 2024. (Slatkin Decl., ¶ 6.) Plaintiff has also shown he was truly "ignorant" of Defendants Cal Pac and OC Metals liability under section 4558 at the time the original complaint was filed because, although he knew the identity of the organizations that employed him, he was ignorant of the facts giving him a cause of action against them (that is, that they removed or failed to install a shear guard and that the device used dies in the manufacturer of other products). Plaintiff's counsel believed that the lack of a shear guard was not the result of a knowing removal or failure to install by the employers but rather was part of the design defect of the machine itself. (Slatkin Decl., ¶ 3.) Therefore, Plaintiff has shown the action is timely under the relation back doctrine.

Accordingly, summary adjudication of Issue 4 is DENIED.

Moving Defendant to give notice.

MOTION NO. 2:

Defendant Cal Pac Sheet Metal, Inc.'s ("Cal Pac") motion for summary adjudication as to Plaintiff Oscar Carmona's claims against Defendant are DENIED in part and GRANTED in part.

Defendant's Evidentiary Objections to the Declaration of Glen Stevick are OVERRULED. (ROA 507.)

Defendant's Evidentiary Objections to the Declaration of Plaintiff are OVERRULED as to Objection Nos. 1, 3, and SUSTAINED as to Objection Nos. 2 and 4. (ROA 504.)

Defendant's Evidentiary Objections to the Declaration of Joshua Cohen Slatkin is OVERRULED as to Objection Nos. 1-8, 13. (ROA 506.) The court declines to rule on the remaining objections as immaterial to the disposition of the Motion.

Defendant's Evidentiary Objections to Plaintiff's Compendium of Evidence is OVERRULED as to Objections Nos. 1, 8, 9. (ROA 508.) The court declines to rule on the remaining objections as immaterial to the disposition of the Motion.

Defendant's Evidentiary Objections to the Declaration of Stacy Rios is SUSTAINED as to Objection No. 1 and OVERRULED as to Objection No. 2. (ROA 505.)

Defendant's Evidentiary Objection to Declaration of Terry McGuire filed in support of defendant Mazzella New Tech Corporation's Opposition to the Motion is OVERRULED as to Objection Nos. 3 and 4. (ROA 486.) The court declines to rule on the remaining objections as immaterial to the disposition of the Motion.

The Court declines to rule on the remaining Evidentiary Objections filed by Defendant and Mazzella as not material to the disposition of the Motion.

ISSUE 1: Plaintiff's second and fourth causes of action against Defendant Cal Pac are barred by California's workers' compensation exclusivity rule because the SSQ MultiPro is not a power press.

For the reasons discussed in OC Metals, Inc.'s ("OC Metals") motion for summary adjudication, summary adjudication of Issue 1 is DENIED.

ISSUE 2: Plaintiff's second and fourth causes of action against Defendant Cal Pac are barred by California's workers' compensation exclusivity rule because Defendant Cal Pac never specifically authorized the knowing removal, or failure to install, a shear guard required or provided by specification by the manufacturer.

For the reasons discussed in OC Metals motion for summary adjudication, summary adjudication of Issue 2 is DENIED.

ISSUE 3: Plaintiff's second cause of action for negligence against Defendant Cal Pac is barred as a matter of law by California's workers' compensation exclusivity rule.

For the reasons discussed in OC Metals motion for summary adjudication, summary adjudication of Issue 3 is GRANTED.

ISSUE 4: Plaintiff's second and fourth causes of action against Defendant Cal Pac are barred by the statute of limitations.

For the reasons discussed in OC Metals motion for summary adjudication, summary adjudication of Issue 4 is DENIED.

Moving Defendant to give notice.

MOTION NO. 3 [ROA 202]:

Defendant OC Metals, Inc.'s ("OC Metals") Motion to Compel defendant Mazzella New Tech Corporation ("Mazzella") to provide responses, without objections, to OC Metals Form Interrogatories (Set Two) and Special Interrogatories (Set Two) is TAKEN OFF CALENDAR.

On 6-2-26, the court GRANTED OC Metals' Motion. (ROA 339, p. 3.)

Moving Defendant to give notice.

7	22-01263671 <i>Chavez vs. Prime Construction Group Inc.</i>	1) Motion to Be Relieved as Counsel of Record 2) Motion to Be Relieved as Counsel of Record 3) Motion to Be Relieved as Counsel of Record 4) Motion to Be Relieved as Counsel of Record 5) Motion to Be Relieved as Counsel of Record The motions of attorney Ryan W. Streckfus to be relieved as counsel for defendants (1) Prime Construction Group Inc., (2) Joe Manoukian, (3) JM Flooring Concepts, (4) JR & Flooring, Inc., and (5) JR & J Flooring, Inc. are GRANTED. (Code Civ. Proc., § 284; Cal. Rules of Court, rule 3.1362.) Attorney will be relieved as counsel of record for clients effective upon filing of a proof of service of the signed order on clients. Moving attorney is to give notice of ruling which includes notice to corporate Defendants that corporations must be represented by counsel.
8	24-01368146 <i>Garcia vs. General Motors LLC</i>	Motion for Attorney Fees Plaintiff Walter Garcia's Motion for Attorney Fees is DENIED. The Court intends to enter an order of dismissal at the hearing. The Court has observed a trend in lemon law cases, nearly all of which settle before trial, which is absent from other civil litigation. The plaintiff files a notice of settlement of the entire case without disclosing to the Court any terms other than whether the settlement is unconditional or conditional, and then fails to follow through with filing of a request for dismissal, later filing a motion for attorney fees on grounds the parties agreed the Court would decide the issue of attorney fees and costs as part of their purported settlement. Under the facts of this case, this approach has no basis in law. "If an entire case is settled or otherwise disposed of, each plaintiff or other party seeking affirmative relief must immediately file written notice of the settlement or other disposition with the court" (Cal. Rules of Court, rule 3.1385(a)(1).) "Except as provided in (c) [conditional settlement] or (d) [compromise of claims of a minor or disabled person], each plaintiff or other party seeking affirmative relief must serve and file a request for dismissal of the entire case within 45 days after the date of settlement of the case. If the plaintiff or other party required to serve and file the request for dismissal does not do so, the court must dismiss the entire case 45 days after it receives notice of settlement unless good cause is shown why the case should not be dismissed." (Cal. Rules of Court, rule 3.1385(b).) "If the settlement agreement conditions dismissal of the entire case on the satisfactory completion of specified terms that are not to be performed within 45 days of the settlement, including payment in installment payments, the notice of conditional settlement served and filed by each plaintiff or other party seeking affirmative relief must specify the date by which the dismissal is to be filed." (Cal. Rules of Court, rule 3.1385(c)(1).) "If the plaintiff or other party required to serve and file a request for dismissal within 45 days after the dismissal date specified in the notice does not do so, the court must dismiss the entire

case unless good cause is shown why the case should not be dismissed.” (Cal. Rules of Court, rule 3.1385(c)(2).)

The use of “must” and “shall” in these provisions establishes the mandatory nature of the Court’s duty to dismiss after the applicable time period has passed, subject only to the good cause exception. (See *Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644, 650 [“court entered the order to fulfill the mandatory duty to dismiss settled cases”].)

The Judicial Council has adopted for mandatory use Form CM-200, Notice of Settlement of Entire Case (Notice), a form designed to inform the court and parties a settlement has been reached. The Notice states, “the entire case has been settled” and requires the signer to state in paragraph 1 whether the settlement is unconditional or conditional. The Notice requires a signature under penalty of perjury from the filer. Due process requires a court to provide notice prior to dismissing a case, including after filing of a Notice. (*Lee v. Placer Title Co.* (1994) 28 Cal.App.4th 503, 510.)

The Court’s jurisdiction to enforce a settlement agreement depends on a clear written or oral stipulation of the parties requesting retention of jurisdiction under Code of Civil Procedure section 664.6. Otherwise, the court loses jurisdiction upon dismissal. (See *DeSaulles v. Community Hospital of Monterey Peninsula* (2016) 62 Cal.4th 1140, 1155 [parties must ask court to retain jurisdiction before dismissal deprives court of jurisdiction].)

Here, on 9/11/25, Plaintiffs filed a Notice stating the parties had reached a conditional settlement of the entire case and representing under penalty of perjury the entire case had been settled and a request for dismissal would be filed no later than 12/10/25. Other than the Notice, no party provided the court with details of the settlement, including, e.g., whether it was entered into following acceptance of a Code of Civil Procedure section 998 offer to compromise or whether the parties had agreed to request the court to retain jurisdiction to enforce settlement terms under Code of Civil Procedure section 664.6.

In reliance on Plaintiffs’ representation, on 9/16/25, the court issued an order setting an order to show cause for 2/5/26 unless the parties complied with their duty to file a full dismissal.

Instead, on 12/12/2025, Plaintiffs filed a memorandum of costs, and on 3/11/2026, Plaintiffs filed a motion for attorney fees, designating a hearing date of 8/27/26. The motion stated the parties reached a settlement on 9/11/25 in which they agreed Plaintiffs were the prevailing party and Plaintiffs’ fees and costs could be decided by motion. (Mot., p. 6.)

Plaintiffs never filed a request for dismissal, and the parties never requested the Court retain jurisdiction under section 664.6. If Plaintiffs wished to have a motion for attorney fees heard, it was Plaintiffs’ duty

		to file a motion and have it heard prior to the proposed dismissal date in the notice of settlement. The Court considers the filing of the Notice under penalty of perjury representing the entire case has been settled a misrepresentation to the Court if, indeed, additional law and motion over settlement terms is contemplated, as it apparently was here. Settlement of the “entire case” means just that. Even if the parties had requested the court to reserve jurisdiction under section 664.6, there would be no settlement of attorney fees to enforce, because terms were not originally agreed upon by the parties. (See <i>Levitz v. The Warlocks</i> (2007) 148 Cal.App.4th 531, 535 [“A settlement with open material terms is not a ‘conditional settlement.’ To the contrary, it is not a settlement at all because, like all contracts, it is not binding until the settling parties agree on all its material terms.”].) Further, Plaintiffs “must follow the procedures outlined in [California Rules of Court, rule 3.1385] subdivisions (a) and (b) even if the parties settle the case and agree to dismiss under the provisions of Code of Civil Procedure section 664.6.” (Advisory Com. com., Cal. Rules of Court, rule 3.1385.) And, “Code of Civil Procedure section 664.6 allows for but does not mandate the dismissal of cases with conditional settlements either upon stipulation of the parties or on the court’s own motion. Subdivision (c) provides an alternative process for cases with a conditional settlement in which dismissal is not sought under Code of Civil Procedure section 664.6” (<i>Id.</i>) Because such issues are not material to the motion, the court will not decide whether the misrepresentation is material or potentially subject to sanctions, whether a true settlement or only an agreement to agree was reached, arguments concerning enforceability of the settlement, and/or whether some other procedure was viable. The Court rules only that the chosen course of action was not.
10	24-01438676 <i>Parker vs. General Motors, LLC</i>	1) Demurrer to Amended Complaint 2) Motion to Strike Portions Of Complaint Defendant General Motors, LLC’s Demurrer and Motion to Strike Portions of the Second Amended Complaint (SAC) are CONTINUED to _____. On the Court’s own motion, an Order to Show Cause re: Terminating Sanctions is scheduled for _____. On June 25, 2026, Plaintiff was previously ordered to file the SAC with the Court within 5 days. Plaintiff failed to do so and, thus, has disobeyed a court order. Further, Plaintiff’s failure to do so has wasted this Court’s resources and time and has prevented this case from proceeding.
11	25-01515519 <i>Philip A. Radovic, Executor of the Estate of Igor D. Radovic vs. Erceg</i>	Motion to Compel Arbitration Defendant Luka Erceg’s Motion to Compel Arbitration is GRANTED. Defendant’s request for judicial notice of Court filings is granted.

Legal Standard:

“On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists,” except under certain situations outlined by statute. (Code Civ. Proc. § 1281.2.)

“There is a public policy in favor of arbitration under federal and state law.” (*McManus v. CIBC World Markets Corp.* (2003) 109 Cal.App.4th 76, 85.) “Doubts as to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration.” (*United Transportation Union v. S. Cal. Rapid Transit Dist.* (1992) 7 Cal. App. 4th 804, 808.) Accordingly, “the court should order the parties to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute.” (*Id.* [cleaned up]) “[T]he party resisting arbitration bears the burden of proving that the claims at issue are unsuitable for arbitration.” (*Green Tree Fin. Corp.-Alabama v. Randolph* (2000) 531 U.S. 79, 91.)

“General principles of contract law determine whether the parties have entered a binding agreement to arbitrate.” (*Pinnacle Museum Tower Assn. v. Pinnacle Mkt. Dev. (US), LLC* (2012) 55 Cal. 4th 223, 236.) “Generally, an arbitration agreement must be memorialized in writing.” (*Id.*) “A party’s acceptance of an agreement to arbitrate may be express, as where a party signs the agreement,” but “[a] signed agreement is not necessary, however, and a party’s acceptance may be implied in fact[.]” (*Id.*) “The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (*Id.*)

Application:

Plaintiff alleges Defendant’s interference with the estate plan of Plaintiff’s now-deceased uncle, Igor Radovic. Plaintiff generally alleges Defendant abused his position as his elderly uncle’s financial advisor to establish or alter the trust in Defendant’s favor. The primary asset of the Trust was a Schwab investment fund in the amount of approximately \$13 million. (Complaint, ¶ 8.) Plaintiff seeks control of the investment account. (¶¶ 45-46 and Prayer for Relief, ¶ 3.)

Defendant contends arbitration is required regarding any claims regarding the Schwab account. (Erceg Decl., Ex. D.)

The motion was timely served on 2/26/26 by email but no opposition has been filed as of 9/21/26.

The Schwab account agreement signed by decedent and Defendant includes the following clauses:

		“By signing an arbitration agreement, the parties agree as follows: All parties to this Agreement are giving up the right to sue each other in court, including the right to a trial by jury, except as provided by the rules of the arbitration forum in which a claim is filed.” “Any controversy or claim arising out of or relating to (i) this Agreement, any other agreement with Schwab, an instruction or authorization provided to Schwab or the breach of any such agreements, instructions, or authorizations; (ii) the Account, any other Schwab account or Services; (iii) transaction in the Account or any other Schwab account; (iv) or in any way arising from the relationship with Schwab, its parent, subsidiaries, affiliates, officers, directors, employees, agents or service providers (“Related Third Parties”), including any controversy over the arbitrability of a dispute, will be settled by arbitration.” “This arbitration agreement will be binding upon and inure to the benefit of the parties hereto and their respective representatives, attorneys-in-fact, heirs, successors, assigns, and any other persons having or claiming to have a legal or beneficial interest in the Account, including court-appointed Trustees and receivers.” “This arbitration agreement will also inure to the benefit of third party service providers that assist Schwab in providing Services ("Third-Party Service Providers") and such Third-Party Service Providers are deemed to be third-party beneficiaries of this arbitration agreement.” Moving Defendant states that Schwab has already obtained an order to arbitrate in the related Probate Court litigation. The Court takes judicial notice of the Probate Court’s 2/4/26 minute order compelling arbitration of Plaintiff’s third cause of action in that case for double damages, attorney fees, and costs against Schwab, but staying such arbitration while Plaintiff litigates his claims against Defendant Erceg which were not compelled to arbitration. Moving Defendant apparently did not seek to compel arbitration of Plaintiff’s claims against him in the probate case. As decedent’s alleged heir, Plaintiff is bound by the arbitration agreement which was also executed by Defendant as Trustee. Plaintiff has not opposed the motion and fails to meet his burden to show his claims against Defendant in this lawsuit do not fall within the agreement. Therefore, Defendant has established the existence of a binding arbitration agreement and the motion is granted. This action is stayed pending completion of arbitration.
12	23-01302857 <i>Providence Capital Funding, Inc. vs. Team MMJ Trucking LLC</i>	Motion for Summary Judgment and/or Adjudication Motion 1: Motion for Court to Accept Late Filing Defendants’ Motion for Court to Accept Late Filing of Defendants’ Opposition to Plaintiff’s Motion for Summary Judgment is DENIED. Defendants Team MMJ Trucking, LLC, Mike Springer and Tonya Springer move the Court to accept the late filing of their opposition to Plaintiff’s motion for summary judgment or, alternatively, summary adjudication.

Defendants seek mandatory relief under Code of Civil Procedure section 473, subdivision (b) (hereinafter, section 473(b)). A motion for mandatory relief must be made no more than six months after entry of judgment and be accompanied by an attorney's sworn affidavit attesting to the attorney's "mistake, inadvertence, surprise or neglect" and a copy of the proposed pleading to be filed. (Code Civ. Proc., § 473, subd. (b).)

The motion is accompanied by a declaration from Defendants' counsel, Guy E. Mailly. The motion is also accompanied by a proposed opposition that was revised after the July 16 hearing. (Mailly Decl., ¶¶ 10, 11, Exs. A-D.)

In his declaration, Mailly explains he mistakenly calendared the opposition to be due on 7/2/26 based on a printed version of the code in the Standard California Codes 2022 edition. (Mailly Decl. ¶¶ 2, 8.) In his haste, Mailly electronically filed earlier incomplete drafts of the opposition, separate statement and supporting declarations, without exhibits, at 12:06 a.m. on 7/3/26 via One Legal. (Mailly Decl. ¶¶ 3-7.) Therefore, it was officially filed at 8:00 a.m. on 7/6/26, the next court day. On 7/9/26, when Mailly called opposing counsel to give notice that he would be filing an ex parte application seeking the court's approval of the late filing, he learned from opposing counsel that Code of Civil Procedure section 437c had been amended as of 1/1/25, requiring the opposition by 20 days before the hearing. (Mailly Decl., ¶ 8.)

Notice

Plaintiff first argues that the motion fails to provide adequate notice. However, Plaintiff waived "any defects or irregularities in the notice of motion" because it timely served an opposition on the merits and appeared at the initial hearing on 9/10/26 and argued the merits. (*Tate v. Superior Court* (1975) 45 Cal.App.3d 925, 930.)

Mandatory Relief

Next, Plaintiff correctly argues that the mandatory relief provision of section 437b does not apply to summary judgment because it is neither a "default," a "default judgment," nor a "dismissal" within the meaning of section 473(b). (See *English v. IKON Business Solutions, Inc.* (2001) 94 Cal.App.4th 130, 143–149; *Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1416–1420; *Prieto v. Loyola Marymount University* (2005) 132 Cal.App.4th 290, 295–297; *Henderson v. Pacific Gas & Electric Co.* (2005) 187 Cal.App.4th 215, 227–229; see also *Las Vegas Land Development Co., LLC v. Wilkie Way, LLC* (2013) 219 Cal.App.4th 1086, 1091 [failure to oppose a motion for summary judgment was not grounds for mandatory relief from the judgment under section 473(b)].) Thus, it follows that the mandatory provision of section 473(b) does not apply to compel the court to accept a late-filed opposition to a motion for summary judgment/adjudication. Defendants have not cited authority holding to the contrary.

Discretionary Relief

Lastly, Plaintiff argues that even under the discretionary standard, relief should be denied because counsel's neglect was not excusable.

Discretionary relief under section 473, subdivision (b) is available to "relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).)

"Within the context of section 473(b) neglect is excusable if a reasonably prudent person under similar circumstances might have made the same error." (*Austin v. Los Angeles Unified School Dist.* (2016) 244 Cal.App.4th 918, 929.) "An honest mistake of law is a valid ground for relief where a problem is complex and debatable. The controlling factors in determining whether an attorney's mistake was excusable are (1) the reasonableness of the misconception and (2) the justifiability of the failure to determine the correct law." (*McCormick v. Board of Supervisors* (1988) 198 Cal.App.3d 352, 360 [cleaned up].) However, relief is not appropriate where the mistake is "simply the result of professional incompetence, general ignorance of the law, or unjustifiable negligence in discovering the law. Further, [t]he term 'surprise,' as used in section 473, refers to some condition or situation in which a party ... is unexpectedly placed to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded against. Finally, as for inadvertence or neglect, [t]o warrant relief under section 473 a litigant's neglect must have been such as might have been the act of a reasonably prudent person under the same circumstances. The inadvertence contemplated by the statute does not mean mere inadvertence in the abstract. If it is wholly inexcusable it does not justify relief." (*Hearn v. Howard* (2009) 177 Cal.App.4th 1193, 1206 [cleaned up].)

Here, Defendants did not brief the issue of discretionary relief despite the court giving Defendants the opportunity to do so with this motion. Nevertheless, the facts presented do not establish that Defendants are entitled to discretionary relief. Defense counsel's admitted error was a mistake of law. Counsel admits he incorrectly calendared the opposition's deadline based on the prior version of the summary judgment statute and failed to check whether the law had changed until Plaintiff's counsel pointed it out long after the deadline passed. Effective 1/1/2025, Code of Civil Procedure section 437c, subdivision (b)(2), set the deadline to serve and file an opposition and supporting evidence at "not less than 20 days preceding the noticed or continued date of hearing." This is a clear bright-line deadline that is not complex, uncertain, or debatable. Defense counsel has not stated any circumstances that justify his failure to discover the correct opposition deadline in a timely manner. Defense counsel cannot claim he was surprised by the new deadline since the statute had been amended 18 months earlier. A reasonably prudent attorney calendaring a potentially dispositive motion for summary judgment would have confirmed the

governing deadline against a current source rather than a printed volume three years out of date. Defense counsel's general ignorance of the current summary judgment law and unjustifiable negligence in discovering the current summary judgment law does not support discretionary relief. (See *Hearn, supra*, 177 Cal.App.4th at p. 1206.)

The motion is denied.

Motion 2: Motion for Summary Judgment/Adjudication

Plaintiff Providence Capital Funding, Inc.'s Motion for Summary Judgment, or, in the Alternative, Motion for Summary Adjudication is GRANTED.

Plaintiff Providence Capital Funding, Inc. ("Plaintiff") moves for summary judgment in its favor against defendants Team MMJ Trucking LLC ("MMJ"), Mike Springer ("M. Springer") and Tonya Springer ("T. Springer") (collectively, "Defendants") on the causes of action against them that are alleged in Plaintiff's complaint. Alternatively, Plaintiff moves for summary adjudication that MMJ has no defense to the first cause of action for breach of contract; Defendants have no defense to the second cause of action for recovery of personal property; defendants M. Springer and T. Springer have no defense to the third cause of action for breach of guaranty; and each of Defendants' 16 affirmative defenses are without merit as a matter of law.

The Court declines to consider Defendants' untimely opposition, which was served on 7/6/26 and filed on 7/7/26. Defendants' opposition was due on 6/26/26. (See Code Civ. Proc., § 437c, subd. (b)(2) [20 days before the 7/16/26 hearing date].) Courts have discretion "to refuse to consider papers served and filed beyond the deadline without a prior court order finding good cause for late submission." (*Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765; *Kapitanski v. Von's Grocery Co., Inc.* (1983) 146 Cal.App.3d 29, 32-33 [court can summarily reject late-filed papers under local rules, but if it considers them at all, it must apply Code Civ. Proc., § 473 standards, and it is an abuse of discretion to refuse relief if "excusable neglect" shown]; CRC, rule 3.1300(d).) Defendants have not established that their untimely service and filing of their opposition was due to excusable neglect.

The Court declines to rule on Plaintiff's objections (ROA 182, 183) as immaterial to the Court's ruling but the objections are preserved for purposes of appeal. (See *Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 526 ["the trial court's failure to rule expressly on any of Google's evidentiary objections did not waive them on appeal"]; see Code Civ. Proc., § 437c, subd. (q).)

Legal Standard

"A party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact." (*Aguilar v. Atlantic Richfield Co.* (2001)

25 Cal.4th 826, 850.) Where a plaintiff seeks summary judgment or summary adjudication, the plaintiff meets its initial burden by “prov[ing] each element of the cause of action entitling the party to judgment on the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(1).) Plaintiff’s initial burden “[does] not include disproving any affirmative defenses asserted by defendants.” (*Oldcastle Precast, Inc. v. Lumbermens Mut. Cas. Co.* (2009) 170 Cal.App.4th 554, 564; *Montrose Chemical Corporation v. Superior Court* (1993) 6 Cal.4th 287, 301, fn 4.)

If plaintiff meets this initial burden, “the burden then shifts to the defendant . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(1).) The defendant may not rely on allegations or denials of its own pleadings. (*Ibid.*) “An issue of fact can only be created by a conflict of evidence. It is not created by speculation, conjecture, imagination or guess work.” (*Yuzon v. Collins* (2004) 116 Cal.App.4th 149, 166 [cleaned up].)

“In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party.” (*Aguilar, supra*, 25 Cal.4th at p. 843.)

First and Third Causes of Action - Breach of Contract and Breach of Guaranty

“To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff’s performance of the contract or excuse for nonperformance (3) the defendant’s breach, and (4) the resulting damage to the plaintiff.” (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.)

“A lender is entitled to judgment on a breach of guaranty claim based upon undisputed evidence that (1) there is a valid guaranty, (2) the borrower has defaulted, and (3) the guarantor failed to perform under the guaranty.” (*Gray1 CPB, LLC v. Kolokotronis* (2011) 202 Cal.App.4th 480, 486.)

Here, the undisputed material facts establish each element of each cause of action.

The existence of a valid contract and valid guaranty: On or about 8/7/20, Plaintiff, as lessor, and MMJ, as lessee, entered into written Lease Agreement No. 20200731/904730 (“Lease”) whereby MMJ agreed to lease from Providence a 2013 Cascadia Freightliner tractor (“Vehicle”) for an initial term of 24 months (“Initial Term”). (UMF 1, 3-5.) At least 120 days before the end of the Initial Term, MMJ could elect to purchase the Vehicle or return it by providing Plaintiff with written notice of its election. Otherwise, the Lease would automatically renew for another 12 months, and thereafter for successive 6 month terms until MMJ returned the Vehicle to Plaintiff. (UMF 6-7.)

Concurrently with MMJ's execution of the Lease, M. Springer and T. Springer executed written guaranty agreements ("Guaranties") whereby they unconditionally guaranteed all obligations owed by MMJ under the Lease. (UMF 8.) In reliance on the Guaranties, Plaintiff extended credit to Defendants. (UMF 9.)

Subsequent to the funding of the Lease, Plaintiff assigned 22 of the Initial Term payments under the Lease to Financial Pacific Leasing ("FPL"), retaining the rights to the first and last payments. (UMF 10.) MMJ made all payments due during the Initial Term of the Lease, including the 22 payments assigned to FPL. (UMF 12-14.) Following payment of the Initial Term payments assigned to FPL, all right, title and interest to the Lease and the Vehicle was reassigned back to Plaintiff. (UMF 14.) Following the reassignment, Plaintiff has held all right, title and interest in the Lease and the Vehicle. (UMF 14.)

Plaintiff's performance: Plaintiff and FPL performed as required under the Lease by paying the vendor and by allowing MMJ to have possession and use of the Vehicle. (UMF 2, 12,14.)

Defendants' breach: At the end of the Initial Term, MMJ did not return the Vehicle to Plaintiff and never provided notice of its election to return or repurchase the Vehicle. Thus, the Lease automatically renewed for an additional 12 month term, and thereafter for successive 6 month terms. (UMF 15.) Beginning November 2022, MMJ stopped making the monthly payments owed to Plaintiff under the Lease. (UMF 16-17.) MMJ continues to possess the Vehicle. (UMF 18.) On or about 1/12/23, Plaintiff made demand upon Defendants for payment of the past due amount and return of the Vehicle. (UMF 19.) However, they failed and refused to do so. (UMF 20.)

Plaintiff's resulting damages: As of 3/15/26, Plaintiff is owed \$67,914.61 from MMJ under the Lease and from M. Springer and T. Springer under the Guaranties. (UMF 20.)

Accordingly, Plaintiff has met its initial burden.

Defendants have failed to timely oppose the motion and, therefore, have failed to establish triable issues of material fact.

Second Cause of Action - Recovery of Personal Property

To establish claim for recovery of personal property, the plaintiff must prove the right to immediate and exclusive possession of the property at the time of the commencement of the action and the defendant has unlawfully refused to return the property to the plaintiff. (*Fredericks v. Tracy* (1893) 98 Cal. 658, 660; *Normart v. Safer* (1924) 67 Cal.App. 507, 519.)

Here, the undisputed facts establish each of these elements. The Lease provides that Plaintiff is the owner of and has title to the Vehicle, and if

	MMJ failed to make any payment when due, Plaintiff could take possession of the Vehicle. (UMF 3-4.) Plaintiff assigned 22 of the Initial Term payments FPL. (UMF 10.) Following MMJ's payment of the Initial Term payments, FPL reassigned all right, title and interest to the Lease and the Vehicle back to Plaintiff. (UMF 12- 14.) Beginning November 2022, MMJ defaulted on the Lease when it stopped making the monthly payments. (UMF 16-17.) On or about 1/12/23, Plaintiff made demand upon Defendants for payment of the past due amounts and return of the Vehicle; however, they failed and refused to do so. (UMF 19-20.) Plaintiff commenced this action on 1/18/23. These facts establish Plaintiff had the right to immediate and exclusive possession to the Vehicle at the time it commenced this action and Defendants refused Plaintiff's pre-litigation demand to return the Vehicle. Accordingly, Plaintiff has met its initial burden. Defendants have failed to timely oppose the motion and, therefore, have failed to establish triable issues of material fact. Plaintiff's motion for summary judgment is granted.
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